

circumstance justifying an apportionment of costs. Whilst the requests could arguably have been filed as part of the appellant's complete case, the later filing of these could not be understood to have resulted in significantly greater work for the respondent. The respondent should have considered what objections were to be made, including, where appropriate, possible objections as regards admittance of such requests into the proceedings.

In T.101/17 the board refused the respondent's (opponent) request for a different apportionment of costs. The respondent argued that the filing of auxiliary requests at the appeal stage – rather than at the stage of opposition – amounted to an abuse of procedure; although the auxiliary requests were not admitted, it had nonetheless been necessary to prepare for the scenario that they would be admitted and to subsequently address them content-wise. The board considered that the case law of the boards of appeal did not support a different apportionment of costs. It concurred with the approach taken in T.1848/12, namely that preparations for discussing the admission of late-filed documents were part of the normal work that can be expected of a party, as an application of the principle that each party bears its own costs. It further observed that in order to establish any causal link between the respondent's expenses and the appellant's behaviour, the respondent would have to show that it was particularly the belated filing of requests that caused the expense rather than the filing of requests as such. As a discussion on the admissibility of requests was a not uncommon occurrence in proceedings in general, this could hardly be credited with separately identifiable expenses.

2.1.2 Late submission was justified

In principle, costs are not apportioned differently if the late submission of facts and evidence appears justified. The boards have assumed in particular that belated submission is justified or that no abuse of procedure has taken place if new documents are filed for the first time at a later stage in the proceedings as a reaction to communications from the board, comments from the other party or amendments of the patent or decisions of the department of first instance which make such documents necessary in the first place (see T.582/88, T.638/89, T.765/89, T.472/90, T.556/90, T.334/91, T.875/91, T.81/92 and T.585/95).

a) No different apportionment of costs ordered

In T.712/94 the board allowed the appellant (opponent) to introduce facts and evidence on alleged prior use at the appeal stage, whilst refusing the respondent's (patentee's) request for apportionment of costs. The patentee had been made aware of the prior-use documents during negotiations conducted well before the first-instance decision was taken; so they had not taken him by surprise when submitted after the failure of those negotiations.

In T.1167/06 the board did not consider it an abuse of procedure that two weeks before the oral proceedings the appellant filed three further auxiliary requests, additional arguments and four short documents, the latter illustrating common general knowledge on issues that had already been discussed. The need to **translate the requests and**

documents and the resultant costs were in the nature of the European procedure with three official languages and affected all parties in equal measure. As the language of the proceedings for the patent was German, the respondent had to expect many submissions to be made in that language. The respondent stated that an additional representative had had to deal with the late filing and travel to the oral proceedings because the **representative assigned the case had been on leave** at the time in question. In the board's view, however, the representative's absence on leave was not the fault of the other party. Moreover, the respondent (opponent) had been represented by the same two representatives before the opposition division, so the additional representative had not needed much time to familiarise himself with the latest dossier updates.

In T 29/96 a new document which was fairly simple and straightforward in content had been filed together with the statement of grounds of appeal. The board ruled that this was the earliest possible moment that the document could have been submitted. In addition, the introduction of the new document could not be regarded as having given rise to a new opposition; the appellant had not introduced a new item of closest prior art but merely a new secondary information source, in an attempt to **fill the gap referred to in the impugned decision** so as to improve its position with respect to the assessment of inventive step.

In T 554/01 the applicant submitted a number of documents following the negative decision taken by the opposition division. The board held that the mere fact that certain documents had been submitted at a late stage did not justify a finding that there had been an abuse on the part of the applicant, especially where they had been submitted as a result of a legitimate desire **to supplement the line of argument** which had been unsuccessful before the department of first instance. Moreover, the respondents had not shown that they had incurred additional costs as a result of the documents' introduction into the proceedings.

In T 1171/97 the board rejected a request for apportionment of costs because it was satisfied that the new documents which had become known to the appellants (opponents) in the course of another search had not been filed in order to obstruct the proceedings, but because they contained aspects which, **according to the statement of the opposition division**, had not been found in the previously available references.

In T 507/03, as a reaction to the reasons given in the impugned decision, the opponent (appellant) filed a new set of documents in the appeal proceedings. Refusing the request for a different apportionment of costs due to the late filing, the board argued that, according to Art. 108 EPC 1973 and R. 65 EPC 1973 (now R. 101 EPC), a statement of grounds of appeal had to identify the extent to which amendment or cancellation of the decision was requested. This, however, did not forbid a losing opponent from filing new pieces of prior art if it was felt that they could counter the reasons given in the appealed decision. Further, the new documents were all **easily understandable** and had not caused **an unreasonable amount of extra work** such as to justify departing from the normal rule that each party meets its own costs pursuant to Art. 104 EPC 1973.

In **T.242/04** the board considered that the respondent's late filing was made **in response to a communication of the opposition division** for making written submissions and took place roughly one month before expiry of the final date accorded in the communication as well as roughly two months before the date for oral proceedings. The circumstances were therefore not such that there was no justification for the late filing or that it could be held that the respondent acted in bad faith. In addition, the appellant who requested an apportionment of costs and, in particular, reimbursement of the travel costs of a technical expert, neither gave any reasons let alone any evidence for the necessity of the technical expert's presence at the hearing before the opposition division, nor provided any evidence that the respective trip was caused only by the said late filing. Therefore, a different apportionment of costs was not regarded as justified.

In **T.333/06** the board found that the appellant's maintenance of his request for admission of the fresh ground for opposition – lack of inventive step – and of the new supporting documents, after being notified of **the board's preliminary negative opinion**, did not constitute abuse, as that opinion was not a final decision. Furthermore, even if the appellant had acknowledged that the new documents were not relevant to novelty, objectively he could not be blamed for having maintained them in the hope that his oral presentation would result in the admission of lack of inventive step as a fresh ground for opposition and hence of the new documents relevant to inventive step. Thus, while this had admittedly made the respondent's preparations for oral proceedings more difficult than they would have been if the appellant had withdrawn the new documents, the procedural conduct on the part of the appellant which had necessitated those preparations was not abusive but one of the appellant's legitimate prerogatives.

In **T.467/15** the board set aside the opposition division's order apportioning costs in favour of the opponent. The opponent had contended that it had been unable to prepare for the oral proceedings before the opposition division due to the large number of diverging auxiliary requests, the point in time at which they were submitted and the reasons for them, which it considered inadequate. In this case, however, the board decided, contrary to the opposition division, that submitting 22 auxiliary requests before the date specified under R. 116(1) EPC could not be deemed an abuse of proceedings or unreasonable. Since amending a case even at an advanced stage of the proceedings was not necessarily inadmissible under the EPC, doing so could not in itself be considered an abuse of proceedings or unreasonable. As a general rule, there needed to be further circumstances to justify awarding costs for reasons of equity because a case had been changed at a late stage (see **T.1781/13**). In the case in hand, the board did not consider the large number of auxiliary requests and the fact that they were diverging to adequately justify an award of costs.

In **T.403/17** the board admitted the submissions filed by the appellant one month before the oral proceedings. It refused a different apportionment of costs because these submissions did not lead to any amendment to the appellant's case within the meaning of Art. 13 RPBA 2020 (different from **T.2165/08** of 6 March 2013, where the board had regarded submissions made shortly before oral proceedings as an amendment to the appellant's case and an abuse of procedure). Considering these submissions and preparing to discuss their relevance to the patentability of the claimed subject-matter were

regarded as being part of the normal preparatory work for the oral proceedings that could be expected by any party to the appeal proceedings (see T 1848/12). The board also noted that it was the appellant's right to write its submissions in German; R 3(1) EPC stipulated that in written proceedings, any party may use any official language of the EPO.

b) Different apportionment of costs ordered for reasons of equity

In T 847/93 a new prior art document was cited in the statement of grounds. Mitigating circumstances for the late filing of new facts and evidence were put forward by the appellants and were held to be credible by the board. However, the board was also of the opinion that it was credible that the costs incurred by the respondents were higher as a result of the introduction of an entirely fresh case than if the facts and evidence had not been filed at a late stage. It therefore decided to order an apportionment of costs under Art. 104(1) EPC 1973 according to which the appellant had to pay the respondents 50% of the costs incurred by the respondents – after remittal to the department of first instance – in respect of the subsequent oral proceedings and the taking of evidence as well as in any subsequent appeal (on the issue of future costs, see chapter III.R.3.1.).

In T 1137/97 a belatedly submitted document was admitted into the proceedings and a different apportionment of costs was ordered. In determining the costs, the board itself, exercising its discretion under Art. 111(1) EPC 1973, awarded a fixed sum of EUR 2 500 to avoid the need for an exact investigation of the amount, which would have been more burdensome for the parties.

In T 937/00 the board found that all the requests presented by the appellant in writing in advance of the oral proceedings were clearly inadmissible and their filing could hardly be considered appropriate in the circumstances of the case, in which the appellant had chosen to file an exceptionally high number of independent claims in response to the notice of opposition. At the very end of the oral proceedings, he had even filed a third auxiliary request according to which all the claims which had been contested in the appeal procedure were simply abandoned. In these circumstances, the board felt compelled to admit the belated auxiliary request (had the board rejected the appellant's third auxiliary request, the appeal would have been dismissed and the revocation of the patent would have become final) and to remit the case to the department of first instance, none of the remaining claims having ever been considered by the opposition division. However, the board ordered for reasons of equity an apportionment of the costs of the oral proceedings.

2.2. Acts or omissions prejudicing the timely and efficient conduct of oral proceedings

2.2.1 Failure of a party to appear at oral proceedings

The boards consider it highly undesirable for summoned parties to announce too late, unclearly or not at all that they will not be attending. Such conduct is inconsistent both with the responsible exercise of rights and with the basic rules of courtesy (see for example T 434/95, T 65/05).

There is an equitable obligation on every party summoned to oral proceedings to inform the EPO as soon as he knows that he will not be attending as summoned (T.212/07), regardless of whether he himself or another party requested the oral proceedings and of whether or not a communication accompanied the summons to oral proceedings. If a party who has been summoned to oral proceedings fails to attend as summoned without notifying the EPO in advance, an apportionment of costs in favour of another party, who has attended as summoned, may be justified for reasons of equity in accordance with Art. 104(1) EPC 1973 (established case law, see for example T.930/92, OJ 1996, 191; T.123/05, T.972/13). As one party's non-attendance does not automatically put the other party at a disadvantage (T.273/07, T.544/94 and T.507/89), one essential question here is whether the appellant's failure to attend rendered the oral proceedings unnecessary (T.10/82, OJ 1983, 407; T.275/89, OJ 1992, 126).

a) Different apportionment of costs ordered

In T.909/90 oral proceedings had been appointed at the appellants' request. Without giving the board or opponents any advance notice, the appellants did not attend the oral proceedings. Nor did they comment on the board's communication. For this reason in particular the oral proceedings contributed nothing new to the case. The board ordered the apportionment of costs without examining whether higher costs had been incurred as a result of the appellants' failure to appear. The appellants' failure to advise the board **in time or at all** that they would not be appearing at the oral proceedings was likewise the reason for ordering them to bear the costs in T.434/95, T.641/94 and T.123/05.

In T.937/04 the appellant (patent proprietor), by fax sent only to the EPO after its business hours on Friday, 17 February 2006, informed the board, without giving reasons, that it would not be attending the oral proceedings on 21 February 2006. The board stated that the appellant, in informing only the EPO and not the other parties, had failed to exercise all due care required and concluded that, for reasons of equity, an apportionment of costs should be accorded in favour of the respondent. See also T.301/12.

In T.693/95 and T.338/90 costs were awarded because notice of the appellant's absence had been given, in the former case, only **an hour** before the oral proceedings and, in the latter, at the time when the oral proceedings were due to start.

In T.280/15 the board held that since the appellant's notice of non-attendance at the oral proceedings had been received only the **evening before** them, the respondent had incurred costs which could have been avoided had the appellant conducted itself properly and observed the basic rules of courtesy. Moreover, the appellant's conduct, and particularly the fact that it had not informed the respondent directly, had prevented the respondent from limiting, if not avoiding, further costs for attending the oral proceedings. But see also T.105/14, in which the board distinguishes the facts from those in T.280/15, in particular in that the appellant had informed the board of its non-attendance **three days** in advance of the oral proceedings.

In T.53/06 the appellant requested oral proceedings "in case the board considers not to set the decision aside". As soon as it received the board's summons to oral proceedings